

21STCV19052 21STCV19052

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-09-23

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Case Number: 21STCV19052 Hearing Date: September 23, 2026 Dept: 413

TENTATIVE

RULING

Case Name: S&I

Construction, Inc. v. Noah Tal

Case Number: 21STCV19052

Proceeding: OSC

re Default Judgment on Tal Cross-Complaint

Date of Hearing: September 23, 2026

Party Against Whom Default Judgment is Sought: Cross-Defendant David Hazan

Summary of Ruling: Default Judgment is denied; Order to Show Cause is continued to _____, 2026, at 8:30AM to give Cross-complainant Noah Tal time to correct the deficiencies in the default judgment request.

The request for Default Judgment by defendant and cross-complainant Noah Tal against cross-defendant David Hazan is denied. Tal provides several exhibits to support his claim of damages. The evidence regarding the costs to correct the deficiencies in Hazan's work, including \$272,075.90 for costs of repair of multiple defects, \$29,500.00 for damage to the roof of the front property, and loss of rental income, in the amount of \$400,000.00 for the back property and \$25,000.00 for the front property, in the amount of \$25,000.00, is sufficient.

But Tal's claim of loss of

financial income is not properly supported.

He submitted federal income tax summaries, but it is unclear whether the

loss of income is attributable to Hazan. In addition, Tal's request to recover the amounts

paid to Hazan for the work performed is not supportable. Other than the costs he had to incur to

correct deficiencies and damage caused by Hazan, he has not offered evidence that

the work for which he paid was not performed.

Tal has also failed to submit exhibits supporting claimed costs, and the

costs claimed on the CIV-100 form (\$1,591.34) do not match the costs claimed in

Tal's declaration in support. Finally,

the amount of interest on the proposed judgment submitted 8/11/26 does not

match that on the CIV-100 filed 6/29/26. As previously pointed out by the Court, Tal

has failed to show a statutory or contractual basis for recovery of attorneys'

fees. Despite having an opportunity to

provide a basis, he has not done so; therefore, the Court will not award

attorneys' fees.

The Court will continue the

Order to Show Cause Re: Default Judgment to _____, 2026, so that Tal may

correct the deficiencies as to all of the foregoing except for attorneys' fees

and amounts paid to Hazan, which shall not be awarded in any default judgment

that is entered.